

limited by such Order, or within such further time as the Court shall appoint, then, on proof made of such publication as aforesaid of the said Order, the Court may order an appearance to be entered for the Defendant, on the application of the Plaintiff

The following is the Form in Schedule C.

A. B., take notice, that, if you do not appear pursuant to the above Order, the Plaintiff may enter an appearance for you, and the Court may afterwards grant to the Plaintiff such relief as he may appear to be entitled to on his own shewing.

English Order
XXXIII.

The English Order 33, of 1845, is in the words of the above Order 22, with the exception of a few words not materially affecting the sense. In the first section in the English Order, the words are "*Subpœna to appear to or to appear to and answer*", and the above Order reads "*to appear to and answer or to answer*", saying nothing of a Subpœna to appear merely.

In the second section of the English Order there are the words ("if an answer be required") and the word "plead" is introduced. The difference there is, that in this country, the Order must *in all cases* state the time within which the Defendant is to answer or demur. Pleas in Equity, are, by the Orders of 1850, entirely abolished in this country, as will be seen by the subsequent Orders, and therefore the word does not occur in the above Order 22.

The Court exercises a discretion on the application for the Order to serve a Defendant abroad, in view of all the circumstances, (*Whitmore vs. Ryan*, 4 Hare 612; 10 Jurist 368).

After such service, the cause may be carried on to hearing, in the usual way, and in default of *Answer*, the Bill taken *pro confesso* as prescribed by the Orders.

The above Order 23 is in the precise words of the English Orders 34, 35, and 36 of 1845.

English Order
XXXI.
Absconding
Defendants.

The above Order 24 is taken from the English Order 31 of 1845, which is in the following words:—

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